



U.S. Department
of Transportation

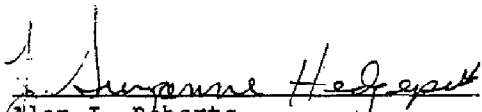
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20530

DOT-E 8991 (EXTENSION)
ORIGINAL April 11, 1983

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8991 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to January 31, 1993. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105 and the public proceeding thereon. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Dist: FHWA FRA FAA

EXEMPTION HOLDER

APPLICATION DATE

Lea-Ronal, Inc.
Freeport, NY

December 28, 1990



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8991

1. LeaRonal, Incorporated, Freeport, New York, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to manufacture, mark and sell packagings prescribed herein for hazardous materials which are required to be labeled POISON, and hazardous materials which are required to be labeled DANGEROUS WHEN WET, for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes hazardous materials, which are required to bear the POISON label, to be transported without that label when packaged as provided in paragraph 7 of this exemption. This exemption also authorizes the transportation of packages bearing the DANGEROUS WHEN WET label, in motor vehicles which are not placarded FLAMMABLE SOLID W. This exemption provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on LeaRonal, Incorporated's application dated January 24, 1983 submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.
3. HAZARDOUS MATERIALS (Descriptor and class). Liquid and solid hazardous materials required to bear the POISON label; classed as Poison B, flammable liquid, corrosive material, flammable solid, oxidizer: hazardous materials required to bear the DANGEROUS WHEN WET label; classed as flammable solid.
4. PROPER SHIPPING NAME (49 CFR 172.101). Specific chemical name or generic commodity description, as appropriate.
5. REGULATION AFFECTED. 49 CFR 172.400; 172.402(a)(2), (a)(3); 172.504(a), and TABLE 1; 173.25(a) and 175.3; packaging sections prescribed for hazardous materials which are not allowed limited quantity exceptions, other than the following sections which are not waived; 173.126, 173.138, 173.237 and 173.246.
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight and cargo-only aircraft.
7. SAFETY CONTROL MEASURES.
 - a. Packaging prescribed for liquids required to bear the POISON label, sodium metal dispersion in organic solvent, and sodium and potassium metal liquid alloys, is tightly closed glass, plastic or metal container not exceeding one quart capacity and sealed with tape or equivalent material. There must be sufficient outage in this inside container so that it will not become liquid-full at 130°F. This inner container must be placed in a heat-sealed barrier bag which is impervious to the lading and then wrapped in sufficient creped cellulose wadding to completely absorb the contents of the inner container. The bagged and wrapped inner container must be placed in a snugly fitting strong rigid can.

The can must be securely closed. The can must be placed in a securely closed single-wall carton constructed of 275 pound test fiberboard.

This carton must be placed in a heat-sealed barrier bag which is impervious to the lading and then in a tightly fitting, securely closed, double-wall carton constructed of 600 pound test fiberboard. No more than four intermediate packages are allowed in the outside packaging. The packaging must comply with the basic design criteria of the UPS' Packaging Number 37 described in UPS' "Guide For Shipping Hazardous Materials, June 1981," except marking reference must be to this exemption "DOT-E 8991".

b. Packaging prescribed for solids required to bear the POISON label, and flammable solids (other than sodium metal dispersion in organic solvent and sodium and potassium metal liquid alloys) covered by this exemption is a tightly closed glass, plastic or metal container with net contents not exceeding 3 pounds, sealed with tape or equivalent material. This container must be placed in a heat-sealed barrier bag which is impervious to the lading. The barrier bag and its contents must be cushioned in a fiberboard box constructed of 275 pound test fiberboard so that there is sufficient cushioning to fill the void between the inner container and any surface of the fiberboard box. The fiberboard box must be placed in a heat-sealed barrier bag which is impervious to the lading and then in a tightly fitting, double wall fiberboard box constructed of 600 pound test fiberboard. No more than four intermediate packages are allowed in the outside packaging. The packaging must comply with the basic design criteria of the UPS' Packaging Number 37A described in UPS' "Guide For Shipping Hazardous Materials, June, 1981," except marking reference must be to this exemption "DOT-E 8991."

8. SPECIAL PROVISIONS.

a. Shippers may use the packaging(s) covered by this exemption pursuant to 49 CFR 173.22a.

b. Each package shipped under this exemption that would otherwise bear a required POISON label, must be marked "DOT-E 8991 NO LABEL REQUIRED" in letters at least one-half inch high on a contrasting background.

c. Each package shipped under this exemption that is labeled "DANGEROUS WHEN WET" must be marked DOT-E 8991 in letters at least one-half inch high on a contrasting background. Vehicles transporting such packages are not required to be placarded "FLAMMABLE SOLID W".

d. A copy of this exemption must be carried aboard each aircraft used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.

10. EXPIRATION DATE. March 15, 1985.

Issued at Washington, D.C.:

APR 11 1983



Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation, Materials Transportation Bureau, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FAA, FHWA, FRA